

Revision — 1.5.1 Computing Related Legislation

OCR H446 — one-page revision summary

Must know

- **Four laws:** Data Protection Act 2018 (+ GDPR), Computer Misuse Act 1990, Copyright Designs & Patents Act 1988, Regulation of Investigatory Powers Act 2000 (RIPA).
- **Data Protection Act 2018 / GDPR** governs how organisations collect, store and process **personal data** (data identifying a living individual). Key principles: lawful/fair/transparent, purpose limitation, data minimisation, accuracy, storage limitation, security (integrity & confidentiality), accountability. Roles: **controller / processor / subject**. Enforced by the **ICO**.
- **Computer Misuse Act 1990** is about **unauthorised access**, not damage — **3 offences**: (1) unauthorised access; (2) unauthorised access **with intent** to commit a further offence; (3) unauthorised **modification** (malware/ransomware/deleting data).
- **CDPA 1988** protects **intellectual property** — the *expression* of original works (software, music, designs), **not the idea**. Protection is **automatic** on creation; you need a **licence** to use others' work.
- **RIPA 2000** governs how **public bodies** (police, security services) may lawfully intercept/monitor communications; can compel ISP access and encryption keys; defines **who may authorise** to prevent abuse.
- **Copyright vs patent**: copyright is automatic and protects expression; a **patent** protects a new **invention/idea** and must be **applied for and granted**.
- **More than one law can apply** — e.g. a hacker steals data (CMA) from a firm that stored it unencrypted (DPA).
- **GDPR ≠ DPA 2018**: GDPR is the EU regulation; DPA 2018 is the UK law implementing it.

Key terms

Term	Definition
Personal data	Data that identifies a living individual
Data controller	Party that decides why and how personal data is processed
Data subject	The individual whom the personal data is about
CMA Offence 2	Unauthorised access <i>with intent</i> to commit a further offence
CMA Offence 3	Unauthorised <i>modification</i> of computer material (e.g. malware)
Copyright	Automatic protection of the expression of an original work
Patent	Protects a new invention/idea; must be applied for and granted
ICO	Information Commissioner's Office — enforces the DPA/GDPR

Worked example / how to — which law applies?

- Employee logs in with a colleague's overheard password but changes nothing → **CMA Offence 1** (unauthorised access).

- Hacker breaks into a bank *intending* to transfer money → **CMA Offence 2** (access with intent).
- Criminal releases ransomware encrypting files → **CMA Offence 3** (unauthorised modification).
- Firm sells its customer list with no lawful basis → **DPA 2018 / GDPR** (the firm is the data controller).
- Student downloads cracked paid software → **CDPA 1988** (copyright infringement).
- Police, correctly authorised, intercept a suspect's messages → **RIPA 2000**.
- **Two laws:** a hacker copies personal data (CMA Offences 1 & 2) held by a retailer who stored it unencrypted (DPA — security principle). Name both and assign the responsible party to each.

Exam tips

- **Name the specific Act and offence number** — not just "it's illegal" (e.g. "CMA Offence 3", not "hacking law").
- Watch for scenarios where **two laws apply** — state each law, the wrong it covers, and who is responsible.
- Keep **CMA = authorisation** (not damage) and **CDPA = expression** (not the idea) clear.
- Don't confuse **copyright** (automatic) with a **patent** (must be granted); don't confuse **GDPR** (EU) with **DPA 2018** (UK).